Chapter 1: Application of the Employment Ordinance

The Employment Ordinance applies to all employees with the following exceptions:

1. a family member who lives in the same dwelling as the employer;
2. an employee as defined in the Contracts for Employment Outside Hong Kong Ordinance;
3. a person serving under a crew agreement under the Merchant Shipping (Seafarers) Ordinance, or on board a ship which is not registered in Hong Kong; and
4. an apprentice whose contract of apprenticeship has been registered under the Apprenticeship Ordinance, other than certain provisions of the Employment Ordinance.

All employees covered by the Employment Ordinance, irrespective of their hours of work, are entitled to basic protection under the Ordinance including payment of wages, restrictions on wages deductions and the granting of statutory holidays, etc.

Employees who are employed under a continuous contract are further entitled to such benefits as rest days, paid annual leave, sickness allowance, severance payment and long service payment, etc.

Continuous Contract of Employment

An employee is regarded as being employed under a continuous contract if the following criteria are met:

1. the employee has been employed continuously by the same employer for four weeks or more; and
2. the employee has met one of the working hours requirements:
   (i) he has worked for at least 17 hours in each week; or
   (ii) (where he has worked less than 17 hours in any week) he has worked for 68 hours or more in a four-week period[1] comprising that week and the three weeks next preceding that week[2].

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[1] The employee has been employed by the employer concerned during this four-week period.

[2] Relevant provisions are set out in the Employment (Amendment) Ordinance 2025 and will be effective from 18 January 2026 onwards. For employment period before this date, an employee is still required to be employed continuously by the same employer for four weeks or more and has worked for at least 18 hours or more each week to meet the “continuous contract” requirement.

In any dispute as to whether a contract of employment is a continuous contract, the onus of proving that it is not a continuous contract shall be on the employer.